

we presume that Congress would have specifically so provided had it wished to abolish the doctrine.⁹

The common law has never granted police officers an absolute and unqualified immunity, and the officers in this case do not claim that they are entitled to one. Their claim is rather that they should not be liable if they acted in good faith and with probable cause in making an arrest under a statute that they believed to be valid. Under the prevailing view in this country a peace officer who arrests someone with probable cause is not liable for false arrest simply because the innocence of the suspect is later proved. Restatement, Second, Torts § 121 (1965); 1 Harper & James, *The Law of Torts* § 3.18, at 277-278 (1956); *Ward v. Fidelity & Deposit Co. of Maryland*, 179 F. 2d 327 (C. A. 8th Cir. 1950). A policeman's lot is not so unhappy that he must choose between being charged with dereliction of duty if he does not arrest when he has probable cause, and being mulcted in damages if he does. Although the matter is not entirely free from doubt,¹⁰ the same consideration would seem to require excusing him from liability for acting under a statute that he reasonably believed to be valid but that was later held unconstitutional, on its face or as applied.

The Court of Appeals held that the officers had such a limited privilege under the common law of Mississippi,¹¹ and indicated that it would have recognized a similar privilege under § 1983 except that it felt compelled to hold otherwise by our decision in *Monroe v. Pape*, 365 U. S.

⁹ Since our decision in *Tenney v. Brandhove*, *supra*, the courts of appeals have consistently held that judicial immunity is a defense to an action under § 1983. See *Bauers v. Heisel*, 361 F. 2d 581 (C. A. 3d Cir. 1966), and cases cited therein.

¹⁰ See Caveat, Restatement, Second, Torts § 121, at 207-208 (1965); *Miller v. Stinnett*, 257 F. 2d 910 (C. A. 10th Cir. 1958).

¹¹ See *Golden v. Thompson*, 194 Miss. 241, 11 So. 2d 906 (1943).